

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/22/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBjRiBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
*HEARING ON MOTION IN RE: TO STAY THE ACTION PENDING DETERMINATION OF APPEAL FILED BY BNSF
FILED BY:
TENTATIVE RULING:

Hearing Required. Appearance by Zoom is acceptable.

2. 9:00 AM CASE NUMBER: C22-01835
CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA
*HEARING ON MOTION IN RE: PROTECTIVE ORDER
FILED BY: BUILDING SERVICES/SYSTEM MAINTENANCE, INC.
TENTATIVE RULING:

Vacated.

3. 9:00 AM CASE NUMBER: C23-02785
CASE NAME: M.P.G. VS. ANTIOCH UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES AND PRODUCTION OF STUDENT RECORDS RE PERPETRATOR STUDENT J.M.C.**
FILED BY: M.P.G.
TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses and Production of Student Records Regarding Perpetrator Student J.M.C. is granted.

Plaintiff's Motion is made pursuant to CFR § 99.31.

The Court orders as follows:

Within 21 days of this Order, Defendant AUSD must produce unredacted copies of all responsive documents regarding perpetrator student J.M.C., including records withheld pursuant to the parental objection under FERPA and any responsive records not subject to FERPA protections. Defendant AUSD may designate these documents CONFIDENTIAL pursuant to the terms of the Protective Order.

4. 9:00 AM CASE NUMBER: C23-03023
CASE NAME: NIMA ATAEI VS. FCA US LLC
***HEARING ON MOTION IN RE: SET TRIAL DATE OR SCHEDULE TRIAL SETTING CONFERENCE**
FILED BY: ATAEI, NIMA
TENTATIVE RULING:

Appearance required.

5. 9:00 AM CASE NUMBER: C23-03102
CASE NAME: ALBERTO MALDONADO VS. RICARDO SALAS
***HEARING ON MOTION IN RE: FOR DETERMINATION OF GOOD FAITH SETTLEMENT**
FILED BY: SALAS, RICARDO
TENTATIVE RULING:

Before the Court is Defendant Richard Salas' Motion for Determination of Good Faith Settlement ("Motion").

Defendant Salas' Motion is **denied without prejudice** for the reasons set forth below.

Factual and Procedural Background

This matter pertains to a multiple motor vehicle accident that occurred on April 1, 2022, at

approximately 4:25 a.m. According to the police report, the accident occurred on the westbound portion of I-80 in Pinole. Due to slowing traffic, Plaintiff Maldonado came to a complete stop in the #2 lane. Non-parties Williams and Rodriguez also came to a complete stop in the #1 and #3 lanes, respectively.

Defendant Salas was driving his Tesla at approximately 70- miles per hour. He asserts that he had the Tesla in 'self-driving mode' at the time. The traffic report indicates that he noticed traffic was slowing down and he assumed that the Tesla would slow down on its own. When it did not, he stepped on the brakes and veered to avoid hitting Maldonado. His actions were too late, and Mr. Salas collided with Mr. Maldonado as well as Williams – who was pushed into Rodriguez. The police report notes that the cause of the accident was Salas' driving at an unsafe speed. No citation was issued.

Plaintiff Maldonado filed his complaint in this matter on December 7, 2023. It alleges four causes of action: (1) strict products liability; (2) negligent produces liability; (3) motor vehicle negligence; and (4) general negligence. All causes of action are alleged against Tesla, while only causes of action 3 and 4 are alleged against Defendant Salas.

Standard

Code of Civil Procedure § 877.6 (a)(1) provides, in relevant part, "Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]" The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc., § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. §877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt*. That case identified six nonexclusive factors for determining if a settlement was made in good faith:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at p. 499.)

A settlor's percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-

1264 The settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving “that the settlement is so far ‘out of the ballpark’ in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute.” (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.)

Analysis

Defendant Salas has agreed to pay Plaintiff the amount of \$2,325,000.00, which is the balance of his insurance policy limits applicable to this incident. In exchange, Plaintiff will dismiss the current action against Defendant Salas and fully release of all claims related to the accident.

If a motion for good faith determination is unopposed, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.) If the motion is contested, the burden of proving the lack of good faith is on the contesting party. (*Id.* at 1262.)

However, before that can happen, the moving party must make a sufficient showing of all the *Tech-Bilt* factors. This can be done in the original motion or by filing counterdeclarations to negate the lack of good faith asserted by the nonsettling contesting party. (*Ibid.*)

“The settling party’s proportionate liability is one of the most important factors.” (*Long Beach Memorial Medical Center v. Superior Court* (2009) 172 Cal.App.4th 865, 873.) Salas’ opening papers indicated that he has agreed to pay \$2,325,000 to settle the matter. He fails, however, to provide any insight into what Plaintiff’s potential recovery could be or any discussion regarding his own potential liability. Without having any additional evidence regarding these factors, the Court cannot make a determination as to the propriety of the settlement amount.

Tesla highlights this lack of evidence in its opposition. Tesla submits Plaintiff’s Statement of Damages (which it notes is inadmissible) to indicate that Plaintiff is claiming over \$12 million in damages, these amounts do not include loss of earnings information. There is no discussion regarding the viability of Plaintiff’s numbers.

In Reply, Salas fails to address these issues. There is still no discussion nor evidence indicating what Plaintiff’s potential recovery could be. In addition, there is no analysis regarding what the proportionate liability between Salas and Tesla might be. Salas’ counsel provides a declaration that states that is “assessment is that SALAS has little to no liability for the subject matter.” (Strenza Decl. ¶ 4.)

“All affidavits relied upon as probative must state evidentiary facts; they must show facts and circumstances from which the ultimate fact sought to be proved may be deduced by the court.” (*Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834.) “Affidavits and declarations setting forth only conclusions, opinions or ultimate facts are to be held insufficient; even an expert’s opinion cannot rise to the dignity of substantial evidence if it is unsubstantiated by facts.” (*Ibid.*)

Mr. Strenza provides no factual support or analysis for his opinion. There is no discussion as to where this analysis comes from. There is no discussion regarding the potential damages Plaintiff may obtain. Without some discussion regarding the possible damages, it is impossible for the Court to determine

whether the \$2,325,000 is a reasonable amount.

"A determination as to the good faith of a settlement, within the meaning of section 877.6, necessarily requires the trial court to examine and weigh a number of relevant factors, *one of the most important of which is the settling party's proportionate liability.*" (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350 quoting *Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871, italics in original.) "If *"there is no substantial evidence to support a critical assumption as to the nature and extent of a settling defendant's liability,* then a determination of good faith based upon such assumption is an abuse of discretion." (*Ibid.* italics in original.)

The Court acknowledges that \$2,325,000 is a substantial amount of money. However, without any evidence and discussion indicating what Plaintiff's potential recover is and evidence supporting Salas' counsel's opinion that he has little to no liability for the subject accident, the Court cannot make a reasoned determination as to the good faith nature of the settlement.

Conclusion

Defendant/Cross-Complainant Richard Salas' motion for determination of good faith settlement is **denied without prejudice**. Mr. Salas is free to file a new motion with additional evidence in support if he so desires.

6. 9:00 AM CASE NUMBER: C24-00162
CASE NAME: MARIA MALDONADO VS. GJACE RIDDELL
*HEARING ON MOTION IN RE: FOR LEAVE FOR ORDER REQUIRING PLAINTIFF MARIA MALDONADA
TO SUBMIT TO MULTIPLE INDEPENDENT MEDICAL EXAMS
FILED BY: RIDDELL, GJACE MORGAN
TENTATIVE RULING:

Vacated.

7. 9:00 AM CASE NUMBER: C24-00841
CASE NAME: BRIAN BANIQUED VS. JUAN MANCHENO
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS & FOR AWARD OF ATTORNEY'S FEES
FILED BY: MANCHENO, JUAN C.
TENTATIVE RULING:

Before the Court is a motion to expunge *lis pendens* filed by Defendant Juan C. Mancheno ("Defendant" or "Mancheno"). Plaintiff Brian Baniqued and Baniqued Realty Inc. dba Baniqued Commercial Real Estate ("Plaintiffs" or "Baniqued") recorded the *lis pendens* against 3114 Hermitage Road, Pebble Beach, California 93953.

Defendant did not make any objections to Plaintiffs' evidence, nor did he file a reply in support of his motion.

For the following reasons, the Defendant's Motion to Expunge *Lis Pendens* is **denied**.

Factual Background

On June 16, 2023, Plaintiffs filed a motion for summary judgment as to Defendant Mancheno's first amended complaint in Superior Court of California, County of Contra Costa, Case No.: C17-02539 (the "Underlying Action"). Defendant Mancheno did not oppose Plaintiffs' motion. (Declaration of Patrick A. Hormillosa ("Hormillosa Decl.") ¶ 2.)

Defendant Mancheno is the designated officer for the loan originator organization, Quality Lending Services Inc. and Defendant Mancheno is also the owner/broker for the real estate company Carmel By The Sea Realty. (Hormillosa Decl. ¶ 3; Exhibits A and B.)

In September 2023, Defendant Mancheno's companies participated in the purchase of the real property located at 3114 Hermitage Road, Pebble Beach, California 93953 ("Hermitage Property") on behalf of his daughter, Mackynzie Giovanna Mancheno. Yolanda Perez was the broker for the transaction on behalf of Carmel By the Sea Realty, but, Defendant Mancheno's e-mail address (Mancheno.juan@gmail.com) was listed on the Purchase Agreement. (Hormillosa Decl. ¶ 4.)

On October 23, 2023, the court granted Plaintiffs' motion for summary judgment as to Defendant Mancheno's first amended complaint in C17-02539.

On October 25, 2023, Defendant Mancheno is listed as the loan officer on the Champions Funding, LLC Approval Certification for a loan refinance against the Hermitage Property. Defendant Mancheno's company, Quality Lending Service, was also listed as the broker for the loan. (Hormillosa Decl. ¶ 6; Exhibit C.)

In the Fall 2023, Mackynzie Mancheno was listed as Chief Executive Officer, Secretary, and Chief Financial Officer of Defendant Mancheno's company, Quality Lending Service. Yolanda Perez was listed as the agent of service for the company. Mancheno was working as veterinary, assistant at Banfield Pet Hospital. (Hormillosa Decl. ¶ 7; Exhibits D and E.)

On January 30, 2024, the court entered Judgment in the Underlying Action in favor of Plaintiffs and confirmed that Defendant Mancheno would take nothing by way of his complaint against Plaintiffs, and awarded Plaintiffs their statutorily recoverable costs.

On March 28, 2024, Plaintiffs filed the instant action.

On July 5, 2024, Defendant Mancheno was personally served at the Hermitage Property.

Defendant filed an answer on February 11, 2025 and the instant motion on September 8, 2025.

Analysis

A motion to expunge a *lis pendens* may be filed "at any time" after the *lis pendens* is recorded. (CCP § 405.30.) Pursuant to CCP § 405.32, Defendant Mancheno moves for an order expunging the *lis pendens* recorded against the subject property, on the grounds that Plaintiffs' claims are not real property claims and that Plaintiffs cannot establish their probable validity.

The court may order the *lis pendens* expunged if: (1) the court finds that the pleading on which the notice is based does not contain a real property claim (Code Civ Proc § 405.31); (2) if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the

real property claim (Code Civ Proc § 405.32); or (3) the court finds that the real property claim has probable validity, but adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ Proc § 405.33).

“Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim. (See § 405.30.)” *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647. The plaintiff must “[A]t least establish a prima facie case. If the defendant makes an appearance, the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” *Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 319.

Real Property Claim

Plaintiffs argue that the cause of action for fraudulent conveyance in violation of Civil Code § 3439.04(a)(1) is a real property claim for purposes of the *lis pendens* statutes.

Section 405.4 defines a “real property claim” as the cause or causes of action in a pleading which would, if meritorious, affect title to, or the right to possession of, specific real property. If the pleading filed by the claimant does not properly plead a real property claim, the *lis pendens* must be expunged upon motion under Cal. Code Civ. Proc. § 405.31.

Section 405.31 provides: “In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.” In making this determination, the court must engage in a demurrer-like analysis. “Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim. ... Review involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer. ... Therefore, review of an expungement order under section 405.31 is limited to whether a real property claim has been properly pled by the claimant.” *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642 (internal quotations and citations omitted).

Here, Plaintiffs alleges in their second cause of action that they had a right to payment from Defendant Mancheno pursuant to the judgment obtained in the underlying action, that Defendant acquired the Hermitage Property via his daughter, Mackynzie Giovanna Mancheno, in order to avoid his creditors, with the intent to hinder, delay, and defraud Plaintiffs.” (FAC at ¶ 32.) The Plaintiffs further allege that “Defendant Mancheno obtained a loan against the Hermitage Property under his name and is preparing the property for sale.” (*Id.*) Additionally, Plaintiffs allege that “Mancheno engaged in the above conduct knowing that his remaining assets were unreasonably small in relation to the transfer or intending to incur, or believe that such transfer would result in, debt beyond his ability to pay as they became due.” (*Id.* at ¶ 34.)

Plaintiffs bring their fraudulent transfer claim pursuant to Civil Code § 3439.04(a)(1). That provision provides that “[a] transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation ... [w]ith actual intent to hinder, delay, or defraud any creditor of the debtor.”

On its face, this would appear to involve the same type of property claim as *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 (“*Kirkeby*”). The plaintiff in *Kirkeby*, as the Plaintiff here, only filed a fraudulent transfer claim to void the transfer “to the extent necessary to satisfy Plaintiffs’ Judgment

against Defendants.” (FAC, Prayer at ¶ 2; *Kirkeby, supra*, 33 Cal.4th at 646.) In *Kirkeby*, there were 26 other claims that did not involve the real property. Yet, because the UFTA specifically allows the remedy of “[a]voidance of the transfer or obligation to the extent necessary to satisfy the creditor's claim” (Civ. Code, § 3439.07, subd. (a)(1)), the *Kirkeby* court held that a fraudulent conveyance claim seeking avoidance of a transfer “is therefore a real property claim for the purposes of the *lis pendens* statutes.” *Kirkeby, supra*, at p. 649.

Plaintiffs’ FAC states a real property claim within the meaning of the *lis pendens* statute.

Probable Validity

Furthermore, Plaintiffs have submitted evidence which establishes by the preponderance of the evidence the probable validity of their real property claim. (CCP § 405.32.) Probable validity is that it is “more likely than not that the claimant will obtain judgment against the defendant on the claim.” (CCP § 405.3.) Plaintiffs have the burden in opposition to establish probable validity. (See *Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 73 [“[i]f a claimant has no convincing evidence of a fraudulent transfer, it will not meet this burden, and the court will expunge notice of *lis pendens*.”].)

Plaintiff alleges a claim for fraudulent conveyance pursuant to Civil Code § 3439.04(a)(1). Section 3439.04 subsection (a)(1) provides that “[a] transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation as follows: ¶ (1) [w]ith actual intent to hinder, delay, or defraud any creditor of the debtor.” (Civ. Code § 3439.04.) In determining “actual intent” the Court may consider eleven enumerated factors, including “whether the value of the consideration received by the debtor was reasonably equivalent to the value of the asset transferred or the amount of the obligation incurred.” (Civ. Code § 3439.04(b)(8).) Pursuant to this section, “[a] creditor making a claim for relief under subdivision (a) has the burden of proving the elements of the claim for relief by a preponderance of the evidence.” (Civ. Code § 3439.04(c).)

Plaintiffs’ evidence suggests that Mackynzie Mancheno is a straw purchaser of the Hermitage Property and that the transaction was designed by Mancheno to avoid paying his creditors, including Plaintiffs. Plaintiffs have demonstrated the probable validity of their real property claim.

Attorneys’ Fees

California Code of Civil Procedure section 405.38 provides that a “court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney’s fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney’s fees and costs unjust.” (Code Civ. Proc, § 405.38.) Such fees are mandatory, except where the court finds that the losing party acted with substantial justification such that an imposition of fees would be unjust. (*Ibid.*) Any such award shall only be against the losing party, not that party’s counsel. (*Doyle v. Superior Court* (1991) 226 Cal.App.3d 1355, 1359.)

Plaintiffs, as the prevailing party, are entitled to attorney’s fees in this matter. Plaintiffs’ counsel has not provided a declaration detailing their hourly rate and number of hours worked defending the instant Motion. In the absence of such documentation the Court cannot award Plaintiffs attorney’s fees at this time.

8. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNKA VS. TATILA DOWNING
***HEARING ON MOTION IN RE: AMEND COMPLAINT**
FILED BY: JARZYNKA, CHRISTOPHER THOMAS
TENTATIVE RULING:

Plaintiff's unopposed motion to amend the complaint is granted for the reasons stated in the motion.

Plaintiff shall file the amended complaint by January 5, 2026.

9. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
HEARING ON SUMMARY MOTION BY PLAINTIFF
FILED BY:
TENTATIVE RULING:

Appearance required.

10. 9:00 AM CASE NUMBER: C25-00498
CASE NAME: MARY AFFINITO VS. DE LA HOUSAYE & ASSOCIATES, ALC
***HEARING ON MOTION IN RE: TO TAX COSTS**
FILED BY: DE LA HOUSAYE & ASSOCIATES, ALC
TENTATIVE RULING:

Cross-complainant's unopposed motion to tax costs is granted for the reasons stated in the motion.

11. 9:00 AM CASE NUMBER: C25-01478
CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOAN OCAMPO (EMPLOYEE)
TENTATIVE RULING:

Defendant's unopposed demurrer to the complaint is sustained without leave to amend.

As mentioned, plaintiff filed no opposition to the demurrer, so no allegations or facts are advanced at this juncture to provide leave to amend.

12. 9:00 AM CASE NUMBER: C25-01624

CASE NAME: ROSS HILLESHEIM VS. LEN EPSTEIN

***HEARING ON MOTION IN RE: ATTORNEYS FEES**

FILED BY: EPSTEIN, LEN I.

TENTATIVE RULING:

Defendants' unopposed motion for attorneys' fees is granted for the reasons stated in the motion.

The court has reviewed the Declaration of Len Epstein and the legal bills attached as Exhibit B to it. The nature of the work and the legal rate are reasonable and substantial evidence supports them. The court awards \$13, 866.50 in attorneys' fees.

The additional attorneys fees sought for bringing this motion are denied, as they are not included as part of Section 12.14 of the Operating Agreement for STEHM, where attorneys fees are allowed for "conducting the suit" and the suit had already been dismissed.

13. 9:00 AM CASE NUMBER: C25-02141

CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on January 26, 2026.

14. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT.

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to fourth amended complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

15. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to first amended cross complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

16. 9:00 AM CASE NUMBER: N23-0180

CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**

FILED BY: MARTINEZ, EDUARDO

TENTATIVE RULING:

The motion for judgment on the pleadings is **granted, without leave to amend**. The Court may grant a motion for judgment on the pleadings directed to a declaratory relief cause of action when the complaint shows that a party is entitled to judgment as a matter of law. (*Alterra Excess & Surplus Ins. Co. v. Snyder* (2015) 234 Cal.App.4th 1390, 1401.) This rule is applicable in the case at bar, as discussed below.

Defendants shall prepare a proposed judgment, separate from any order on this motion, for circulation and submission to the Court for signature.

I. Background

The factual background was set forth in detail in the Court's ruling on the writ cause of action, filed on September 30, 2024. It need not be repeated here.

Petitioner filed this action in January 2023, soon after the relevant transaction. Respondents filed their Answer on April 12, 2023. Nothing occurred in this case until Petitioner filed a request for hearing on the "Petition for Writ of Mandate [Code Civ Proc. 1085]." After an unusual procedural sequence of briefing, and without any notice that the hearing would include oral testimony, the Court held a law and motion hearing on the writ in September of 2024. It ruled against Petitioner with respect to the writ of mandate cause of action, but noted that the declaratory relief and injunctive relief causes of action were still outstanding.

After unsuccessful efforts to meet and confer in compliance with Code of Civil Procedure, § 439 (see Declaration of William C. Mazzota in Support of Motion), defendants filed this motion for judgment on the pleadings on September 4, 2025, arguing the remaining causes of action are duplicative of the writ cause of action and, therefore, there is nothing left to decide. Petitioner opposes the motion, arguing that the reasons for denial of the writ included the denial of oral testimony at the time of the hearing on the writ (the hearing had not been noticed as an evidentiary hearing, as required). In the alternative, if the motion is granted, Petitioner requests leave to amend.

II. Request for Judicial Notice (RJN)

The motion is supported by a request for judicial notice attaching certain parts of the City Charter and Resolution No. 168-22 of the City Council. Petitioner does not object to the request, which is **granted**.

III. Standard

Code of Civil Procedure, § 438 (c)(1)(B)(ii) allows the Court to grant a motion for judgment on

the pleadings in favor of a defendant if the complaint fails to state facts sufficient to constitute a cause of action against that defendant. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Like on demurrer, when considering a motion for judgment on the pleadings, the Court must accept as true all facts alleged in the complaint. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1151.) The grounds for such motion must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438 (d).)

IV. Discussion

Petitioner does not oppose the motion with respect to the injunctive relief "cause of action." The Court construes this as an admission of the motion's merit.

As to declaratory relief, such remedy is appropriate where "[a]ny person [...] desires a declaration of his or her rights or duties with respect to another [...] in cases of actual controversy relating to the legal rights and duties of the respective parties [...]" (Code Civ. Proc., § 1060.) The availability of such relief is discretionary. (*Ibid.* ["court *may* make a binding declaration of these rights or duties"].) Further, courts have generally held that the declaratory relief statute should not be used for the purpose of determining an issue which can be determined in the main action. (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324.)

Here, as pointed out in the motion, the Court has already determined the merits of the writ cause of action. It would be improper to allow Petitioner a renewed opportunity to make the same arguments he could have presented to support a writ of mandate. Even at the time of the Court's previous ruling, Petitioner was not the Mayor. At this point, it has been more than two years since Petitioner was Mayor. Petitioner offers no facts in support of his opposition that indicate this is an ongoing problem with respect to the current City government. Accordingly, he has not met his burden to show amendment of the petition is justified. Should Petitioner contest this ruling, he shall appear prepared with facts that indicate an actual controversy as contemplated by Code of Civil Procedure, section 1060.

17. 9:01 AM CASE NUMBER: C24-01615
CASE NAME: MARIUS CANTEA VS. FCA US LLC
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS**
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: CANTEA, MARIUS
TENTATIVE RULING:

Appearance required.

18. 9:01 AM CASE NUMBER: C23-01482
CASE NAME: MAURO LUIS VS. SURINDER SINGH
***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF THE PERSON**

MOST QUALIFIED AT CK HAUL INC.
FILED BY: LUIS, MAURO SANTIAGO
TENTATIVE RULING:

The unopposed motion to compel attendance and testimony of the person most qualified at CK Haul Inc is granted.

The court will execute the proposed order filed on September 30, 2025, but requiring the deposition to take place within 30 days of the order.

19. 9:01 AM CASE NUMBER: C23-01482
CASE NAME: MAURO LUIS VS. SURINDER SINGH
***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF SURINDER SINGH**
FILED BY: LUIS, MAURO SANTIAGO
TENTATIVE RULING:

The unopposed motion to compel attendance and testimony of Surinder Singh is granted.

The court will execute the proposed order filed on September 3, 2025, but requiring the deposition to take place within 30 days of the order.

20. 10:00 AM CASE NUMBER: C24-00804
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. KAYLA FREITAS
COURT TRIAL HEARING 2 HOURS
FILED BY:
TENTATIVE RULING:

Appearance required.

Law & Motion
Add On

9:00 AM CASE NUMBER: C24-01562
CASE NAME: MARK SHOTWELL VS. STATE FARM GENERAL INSURANCE COMPANY
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES FROM DEFENDANT**

STATE FARM GENERAL INSURANCE COMPANY.

FILED BY:

TENTATIVE RULING:

Appearance required.

9:00 AM

CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT FILED BY DAVID T SEENO**

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for leave to file a first amended complaint by Plaintiffs David T. Seeno and David T. Seeno as Trustee of the David T. Seeno Revocable Trust. This motion is opposed by Defendant Albert D. Seeno, Jr.

Plaintiffs' motion is **granted**. Plaintiffs' First Amended Complaint is deemed filed as of the date of this hearing, 12/22/25. Plaintiffs shall file a separate copy of their First Amended Complaint by 12/26/25.

Judicial Notice

Defendant ADSJ requests judicial notice of (1) Albert D. Seeno III (ADS3)'s initial Complaint in Case No. C23-00614, *Albert D. Seeno III, et al. v. Albert D. Seeno, Jr.*, dated March 18, 2023; (2) ADS3's Second Amended Complaint in Case No. C23-00614, dated December 11, 2024; (3) the Final Ruling on Defendant ADSJ's Motion to Compel in Case No. C23-00614, dated June 5, 2025; and (4) the Declaration of Christa Hyams-Millard in Support of Plaintiffs' Motion Seeking Leave to Amend, Case No. C23-00614, dated July 3, 2025.

"[A] court [may] take judicial notice of a prior judgment in a different case even though such judgment or its content is not pleaded in the complaint, provided (a) the judgment is appropriately drawn to the court's attention and (b) the plaintiff has adequate notice and opportunity to be heard on the question of the effect of such judgment." (*Flores v. Arroyo* (1961) 56 Cal.2d 492, 496, Evid. Code, § 452(d).)

When taking judicial notice of court records, the court is limited to noticing the *existence* of each document in a court file but can only take judicial notice of the truth of facts asserted in orders, findings of fact and conclusions of law, and judgments. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) This does not include taking judicial notice of the existence of facts asserted in all of a court file's documents, including pleadings and affidavits. (*Ibid.*)

ADSJ's Request for Judicial Notice of the aforementioned court records is **granted**.

Brief Factual and Procedural Background

This case arises out of Plaintiffs', David T. Seeno and David T. Seeno as Trustee of the David T. Seeno Revocable Trust ("David")'s allegations that his father, Defendant, Albert D. Seeno, Jr. ("ADSJ"), disregarded his fiduciary duties as an officer and director of a suite of Jointly Held Businesses, of which Plaintiffs are shareholders. (Comp. at 1:25-27.) Specifically, David alleges that ADSJ has directed the Jointly Held Businesses to make distributions to numerous other shareholders, including two of David's siblings, while excluding David. (Compl. at 2:4-6.) David alleges these distributions are made "in an arbitrary manner disconnected from any valid business purpose." (*Ibid.*)

David seeks the Court's leave to amend his initial complaint "[i]n light of the complex and developing nature of the claims." (Mot. For Leave to File FAC at 3:13-14.) The amendment deletes certain allegations, and, according to David, "streamlines the claims which will potentially be presented at trial." (*Id.* at 3:15-16.)

ADSJ contends that David's sole goal in seeking the Court's leave to amend his complaint is to avoid having to produce his tax documents in discovery. (Opp. at 2:13-14; 5:8-11.) ADSJ grounds this assertion on two bases: (1) in light of the edits themselves, and (2) in view of a nearly identical tack taken by David's brother in a similar suit. (Opp. At 2:13-25, 27-28.)

ADSJ notes that the bulk of the proposed changes to David's complaint consist of deletions of reference to David's allegation that ADSJ harmed him by creating "unfunded tax liability" when ADSJ improperly distributed money from the Jointly Held Businesses to other shareholders. (Compl. at 2:4-6, 2:14-17; Yu Dec. ISO Mot, Ex. A (Proposed First Amended Complaint ("Prop. FAC")) at 2:13-16, 28, 8:23-28, 9:1-3, 10:14-15, 12:15.)

ADSJ also urges the court to consider the strategy taken in the aforementioned similar suit brought against ADSJ by David's brother, Albert D. Seeno, III ("ADS3"). There, ADS3 made the same allegations regarding unfunded tax liability and subsequently sought leave to amend his complaint when a discovery referee held that ADS3 would be compelled to produce his tax documents, given that he had put them at issue in his complaint. (Opp. at 2:13-17.)

ADSJ contends that David's strategy is the twin of ADS3's and is a sign that David's motion for leave to amend is grounded in bad faith. (Opp. at 5:6-11.)

Standard for Leave to Amend

In the furtherance of justice and in its discretion, the court may, after notice is given to the opposing party, allow an amendment to any pleading to correct a mistake. (Code Civ. Proc., § 473(a)(1).) "[C]ourts should indulge in great liberality in permitting amendment so that no litigant shall be deprived of his day in court because of technicalities." (*Landis v. Superior Court of Los Angeles County* (1965) 232 Cal.App.2d 548, 554.) The trial court has wide discretion in allowing the amendments of any pleadings and the ruling of a trial court will be upheld unless a "manifest or gross abuse of

discretion is shown.” (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)

“[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Even where a party unreasonably delays, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) “[C]ourts generally should permit amendment to the complaint at any stage of the proceedings, up to and including trial.” (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175.)

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state (1) what if any allegations are proposed to be deleted, (2) what if any allegations are proposed to be added, and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal Rules of Court, Rule 3.1324(a).) A motion to amend a pleading must also have attached a declaration that specifies why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request to amend was not made sooner. (Cal Rules of Court, Rule 3.1324(b).)

Analysis

The proposed amendments to the Plaintiffs’ initial complaint in this case consist almost exclusively of deletions of every previous reference to unfunded tax liability. David calls this merely “streamlin[ing]” the complaint. ADSJ, however, asserts that the proposed amendments are prejudicial such that leave to amend should be denied. (Yu Dec. ISO Mot at ¶ 5., Opp. at 5:14-15.)

Prejudice

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc., §576.) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co., supra*, 213 Cal.App.3d at 1048.) Prejudice in this context is where amendment would result in, among other things, necessitating a continuance to allow the defendant to depose new witnesses, a delay of trial, along with a loss of critical evidence, added costs of preparation, or increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Here, ADSJ asserts that by removing the unfunded tax liability allegations, “David is fundamentally changing the nature of this case and the course of discovery.” (Opp. at 2:20-23.) ADSJ notes that the complaint has been on file for over a year, such that ADSJ has “develop[ed] theories, strategies, and discovery requests, some of which have already been served.” (*Id.* at 5:12-14.) ADSJ also questions what of David’s claims or prayer for damages even remains, in the absence of the allegations about

unfunded tax liability. (*Id.* at 5:18-19.)

But trial has not been set, and discovery has only just commenced, with Defendant propounding the first set of requests for production October 28, 2025. (Opp. at 4:4-5.) ADSJ does not provide any authority, and the Court is not aware of any, that finds prejudice where a defendant, who has begun to develop a legal and discovery strategy, is compelled to reevaluate that strategy at the opening of discovery before a trial date is set after a moving party seeks to *remove* an allegation.

Defendant cites *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 245, as an example of a case in which denial of leave to amend was proper where “there was an unexplained delay of 14 months in *raising the new cause of action*.” (*Le Mere, supra*, 35 Cal. App. 5th at 245, emphasis added.) But here, plaintiff explains that the amendment seeks to streamline his complaint, and in doing so he is not adding a new cause of action but merely removing an allegation. (Yu Dec. ISO Mot at ¶ 5.)

While it may be an inconvenience for ADSJ to reconfigure his trial strategy at this juncture, such an inconvenience does not rise to the level of prejudice. Leave to amend should be granted even where an amendment changes the relevant legal theories, so long as the amended pleading, as here, relates to the same general set of facts. (*Kittredge Sports Co., supra*, 213 Cal. App.3d at 1048, *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489.)

Delay

California Rules of the Court 3.1324(b) requires that a motion to amend a pleading must include a declaration that specifies why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request to amend was not made sooner. (Cal Rules of Court, Rule 3.1324(b).) “A long unexcused delay may be the basis for denying permission to amend pleadings.” (*Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139, *see also: Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692, and *Rainer v. Community Memorial Hosp.* (1971) 18 Cal.App.3d 240, 258.)

“Where inexcusable delay and probable prejudice to the opposing party is indicated,” denial of leave to amend is warranted. (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.) Delay by itself, however, is insufficient to overcome the general rule of “great liberality” in granting leave to amend, particularly in the absence of prejudice to the non-moving party. (*Landis, supra*, 232 Cal.App.2d at 554, *Kittredge Sports Co., supra*, 213 Cal.App.3d at 1048.)

Prejudice requires that a defendant is disadvantaged to a greater degree than finding a need to reevaluate litigation strategy at the outset of discovery before a trial date has been set. (*Magpali, supra*, 48 Cal.App.4th at 488 [prejudice found where trial date was set, jury was about to be impaneled, counsel, parties, trial court, and witnesses had blocked the time, and the only way to avoid prejudice to the opposing party was to continue the trial], *Estate of Murphy v. Gulf Ins. Co., supra*, 82 Cal.App.3d at 311 [prejudice found where plaintiff sought to broaden the issues in the case where

discovery had been completed, the jury had been impaneled , the trial was ready to proceed , the plaintiff “was in no position to prove this supposed fact,” and “the proposed amendment opened up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.”.)

Here, David’s attorney, Charmaine G. Yu (“Ms. Yu”) filed a Declaration in Support of David’s Motion for Leave to File a First Amended Complaint wherein she noted that the proposed FAC does not contain new claims and only “removes certain allegations in the original complaint to streamline the claims Plaintiffs will potentially present at trial.” (Yu Dec. ISO Mot at ¶ 5.)

Such an amendment narrows the issues and promotes judicial economy; it does not prejudice the defendant. In removing an allegation, David, rather than “open[ing] up an entirely new field of inquiry without any satisfactory explanation,” is instead removing an allegation to “streamline” his complaint. (*Estate of Murphy v. Gulf Ins. Co.*, *supra*, 82 Cal.App.3d at 311, Yu Dec. ISO Mot at ¶ 5.)

Because the Court concludes there is no prejudice to ADSJ if David is allowed to make the proposed amendments, the Court also concludes that any delay is insufficient ground to support a denial of the instant motion. As such, Plaintiff’s motion for leave to amend is **granted**.

9:00 AM

CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO DISQUALIFY PLAINTIFFS' COUNSEL FOR UNAUTHORIZED COLLECTION AND POSSESSION OF TAX RECORDS C24-02806**

FILED BY:

TENTATIVE RULING:

The motion to seal portions of the motion to disqualify is granted for the reasons stated in the motion.

9:00 AM

CASE NUMBER: C25-01068

CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER FILED BY CHRISTOPHER LONDAHL

FILED BY:

TENTATIVE RULING:

Appearance required.

9:00 AM CASE NUMBER: C25-01113

CASE NAME: RANA SINGH VS. KANWAR SINGH

***HEARING ON MOTION FOR DISCOVERY COMPEL INSPECTION AND PRODUCTION OF THE ACCOUNTING DATABASES FROM DEFENDANTS AND FOR MAOETARY SANCTIONS FILED BY RANA SINGH**

FILED BY:

TENTATIVE RULING:

Vacated. Notice of Conditional settlement.

9:00 AM CASE NUMBER: MSC21-02364

CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.

***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS**

FILED BY:

TENTATIVE RULING:

Appearance required.

9:00 AM CASE NUMBER: MSC21-02364

CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.

***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**

FILED BY:

TENTATIVE RULING:

Appearance required.

Law & Motion
Add On 2

9:00 AM

CASE NUMBER: C23-01934

CASE NAME: DAVID ALVAREZ VS. HYU KANG, DMD

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Appearance required. The court will only approve \$106,250 in attorneys fees.